

Document Reference Number: UHN-PO-HR24

Policy/Guideline Title:	Annual Leave & Public Holiday Entitlements for Agenda for Change Staff Policy		
Executive Summary:	This policy provides instruction and guidance on annual leave and Public Holiday entitlements and the application process for requesting leave for all substantive colleagues with an Agenda for Change contract of employment.		
Supersedes:	NGH – Annual Leave and General Public Holiday Entitlements NGH-PO-562 KGH - Annual Leave for Non-Medical Staff Policy A.3.1		
Description of Amendment(s):	Full review and harmonisation into a Group policy		
This policy will impact on:			
Policy Area:	People Division	Approval Date:	March 2024
Version Number:	1	Review Date:	December 2026
Issued By:	Paula Kirkpatrick, Chief People Officer	Expiry Date:	March 2027
Author:	Sarah Kinsella, HR Business Partner – Governance and Compliance	Impact Assessment Date:	15 February 2024
APPROVAL RECORD			
	Committees / Group	Date	
Consultation:	Group Policy Review Forum	February 2024	
Endorsed by Head of Function:	Paula Kirkpatrick, Chief People Officer	February 2024	
Ratified by:	UHN Policy Ratification Group	27 March 2024	
Received for Information:			

Dedicated to Excellence Values	What our values mean	How this applies to the policy
 Compassion	We care about our patients and each other. We consistently show kindness and empathy and take the time to imagine ourselves in other people's shoes.	• Our Annual Leave Policy should be applied with compassion genuinely caring for the well-being of our colleagues. • Managers consistently show kindness and empathy, taking the time to understand colleagues challenges and needs. • Managers offer support and assistance to colleagues facing personal difficulties and prioritise creating a nurturing environment where everyone feels valued and supported. • Managers support requests annual leave and will not unreasonably refuse a request unless there is a genuine business reason.
 Accountability	We take responsibility for our decisions, our actions and our behaviours. We do what we say we will do, when we say we will do it. We acknowledge our mistakes and we learn.	• Colleagues and managers take responsibility for their decisions, actions, and behaviours, ensuring that they fulfil their commitments and meet expectations. • Colleagues and Managers hold themselves accountable for honouring deadlines, providing timely responses, and supporting their team members' requests for annual leave.
 Respect	We value each other, embrace diversity and make sure everyone feels included. We take the time to listen to, appreciate and understand the thoughts, beliefs and feelings of others.	• We respect the UHN values are the way we do things together to achieve the best possible outcomes. • We value and respect each team member, embracing diversity and fostering an inclusive work environment. Recognising that individuals come from different cultures and backgrounds and have differing life experiences. • We actively listen to, appreciate, and acknowledge the thoughts, beliefs, and feelings of others. • If discussions are needed regarding annual leave requests, we undertake these with respect and dignity
 Integrity	We are consistently open, honest and trustworthy. We can be relied upon, we stand by our values and we always strive to do the right thing.	• We consistently demonstrate openness, honesty, and trustworthiness in all aspects of annual leave processes. • For instance, we ensure transparency by openly communicating the reasoning behind our decisions and maintaining confidentiality when necessary.
 Courage	We dare to take on difficult challenges and try out new things. We find the strength to speak up when it matters and we see potential failure as an opportunity to learn and improve.	• We dare to take on and try new approaches to how and where our teams work, where possible • We find the strength to speak up when it matters, sharing our opinions and concerns constructively. • We fostering a culture that encourages new ways of working, innovation, risk-taking, and resilience

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1. INTRODUCTION

University Hospitals of Northamptonshire (UHN) aims to promote a positive and healthy work-life balance, and we recognise the importance of annual leave to help to achieve this.

It is important that colleagues take regular breaks from their duties through leave as everyone requires a rest period and an opportunity to 'switch off' completely from the workplace, for their health and wellbeing.

In addition to the statutory entitlement, the NHS offers additional contractual annual leave and general public holiday (bank holiday) entitlement as part of the NHS Terms and Conditions of Service.

This policy refers to leave in relation to annual leave and general public holidays (bank holidays) only. Information regarding other types of leave, for example maternity leave, parental leave or carers leave, can be found in the following policies and procedures:

- Leave in Relation to Starting a Family Policy
- Special Leave Policy.

Further supporting information on Annual Leave entitlements and calculations can be found via:

- [KNet](#)
- [The Street](#)

2. PURPOSE

This policy is aimed at providing guidance to all colleagues and managers on entitlements, calculating and the process for requesting, processing and managing requests.

3. SCOPE

This policy applies to all substantive colleagues who have an Agenda for Change contract of employment.

It should be noted that for colleagues on term-time contracts or annualised hours, the provision of when annual leave will be taken, will be agreed as part of the contract of employment.

This policy does not apply to Bank Workers, who receive an enhanced rate of pay in lieu of annual leave.

This policy does not cover Medical and Dental colleagues or Very Senior Managers who have separate Terms and Conditions of Service.

This policy does not cover the purchase of additional annual leave. Information regarding this can be found as part of the SOP's (Standard Operating Procedures) that are linked to the Special Leave Policy.

4. SUBSTANTIVE CONTENT

4.1. Annual Leave Entitlement

The annual leave year runs from 1st April to 31st March each year and is calculated in hours. A full years entitlement, if you are contracted to work full-time (37.5 hours per week) is:

Annual Leave Entitlement based on Length of Reckonable NHS Service	Annual Leave and Public Holidays for a Full-Time Colleague
On appointment to NHS	202.5 hours + 60 hours public holidays (27 days plus 8 public holidays)
After 5 years reckonable NHS service	217.5 hours + 60 hours public holidays (29 days plus 8 public holidays)
After 10 years reckonable NHS service	247.5 hours + 60 hours public holidays (33 days plus 8 public holidays)

If you are a part-time colleague, the above entitlements will be calculated on a pro-rata basis and will be proportional with the number of hours per week you are contracted to work.

Your entitlement will also be based on any continuous previous reckonable service with an NHS employer for the purpose of calculating your annual leave entitlement. This will include any aggregated NHS service i.e., any period of time that you have worked in the NHS, in a substantive post, regardless of whether or not there has been a break in service.

We also have the discretion to take into account any period or periods of employment outside of the NHS, which can be counted towards your aggregated service where these are judged to be relevant to your NHS employment and are comparable in their function and qualification to your current role. Such roles may include local authority employment (including Education and Social Services), health or social care roles within primary care, the armed forces, the private sector or the voluntary sector. Locum, agency and bank work will not count. Employees can be requested to provide evidence of their previous service i.e. a contract of employment, start date letter or p60, if it cannot be verified through internal mechanisms. Managers can seek advice regarding this from the People Partnering

Team. Employee Online/e-Rostering will need to be updated to reflect the annual leave entitlement.

4.2. General Public Holiday (Bank Holiday) Entitlement

A bank holiday is defined as a period of normal duty that starts within the period of 24 hours from midnight to midnight.

There are normally 8 bank holidays in an annual leave year:

Good Friday	Easter Monday	May Day
Spring Bank Holiday	August Bank Holiday	Christmas Day
Boxing Day	New Year's Day	

However, there will be some years where this number fluctuates due the Easter Holidays being falling twice in one annual leave year. Also, on occasion, additional one off bank holidays are granted for national events such as Royal events or other national celebrations. In the event of these happening your leave entitlement will be adjusted to reflect these situations.

4.3. Entitlement if you Join Part Way Through the Annual Leave Year

If you start your employment part way through the annual leave year you will be entitled to the following (on a pro-rata basis if you are part-time):

Type	Pro Rata Entitlement
Annual leave entitlement	Leave for the number of remaining complete weeks* left in the current annual leave year from your start date
General Public Holiday (Bank Holiday) entitlement	The number of bank holidays that are left in the current annual leave year from your start date.

*A complete week begins on a Monday and ends on a Sunday

See [KNet](#) or [The Street](#) for some examples of how to calculate these entitlements

4.4. Entitlement if you Leave Part Way Through the Annual Leave Year

If you leave your employment part way through the annual leave year you will be entitled to the following (on a pro-rata basis if you are part-time):

Type	Pro Rata Entitlement
Annual leave entitlement	Leave for the number of complete weeks* worked in the current annual leave year by your leaving date
General Public Holiday (Bank Holiday) entitlement	The number of bank holidays that have taken place in the current annual leave year by your leaving date.

*A complete week begins on a Monday and ends on a Sunday.

If by your leaving date you have taken more annual leave than you are entitled to, an appropriate deduction will be made in your final salary.

If by your leaving date you have not taken all of the annual leave that you are entitled to, a payment to cover the leave entitlement can be made in your final salary or you can adjust your leaving date to enable you to take the annual leave.

See [KNet](#) or [The Street](#) for some examples of how to calculate these entitlements

4.5. Entitlement if Something Changes Part Way Through the Annual Leave Year

There are two common changes part way through an annual leave year that may require your leave entitlement to be recalculated.

Change	Action
Change of contracted hours	Original calculation to be adjusted to the number of weeks* completed before hours change (including Bank Holidays). Remainder of the annual leave year to be recalculated (including Bank Holidays) on the new hours. Two calculations to be added together for the full year's entitlement.
Five or ten years reckonable service reached	Original calculation to be adjusted to the number of weeks completed* on the previous amount of reckonable service. Remainder of the annual leave year to be recalculated on the new amount of reckonable service. Two calculations to be added together, plus the bank holidays for the full year's entitlement.

*A complete week begins on a Monday and ends on a Sunday.

See [KNet](#) or [The Street](#) for some examples of how to calculate these entitlements

4.6. Requesting/Approving Annual Leave

In busy environments it is really important to plan ahead when considering requesting annual leave. You are responsible for requesting your annual leave in a timely manner.

It is important to try to use your annual leave proportionally over the annual leave year to ensure that you are getting regular breaks. Please aim to have used 75% of your entitlement by 31 December each year.

Your department will have local rules regarding annual leave, which will include:

- Any deadlines that requests need to be made by for popular periods such as summer holidays and Christmas/New Year.
- Extended leave requests.

- The maximum number of colleagues that can be off at any one time.
- The minimum number of colleagues and skill mix that is required to ensure that patient safety and the quality of care or service provision is not compromised.

All leave must be agreed between you and your manager (or their deputy/designated rota co-ordinator) and departmental procedures for applying followed. This will usually be via Employee Online/e-Rostering. Your manager (or their deputy/designated rota co-ordinator) should aim to approve your request as soon as possible (ideally within 1 week of receiving it). Likewise if they are not able to approve it, discuss the reasons why with you, ideally within 1 week of receiving your request..

If a request cannot be approved due to the safe service provision the reason/s for the refusal will be discussed with you and alternative options explored to endeavour to come to agreement on a different arrangement that is suitable for all. Please note here that if you have booked and paid for any holidays prior to getting your annual leave approved you do so at your own risk. We will not be responsible for any payments/deposits lost due to the not approving your annual leave request.

If you have high amounts of unused annual leave your line manager will discuss this with you to ensure that plans are in place for you to use it. In addition, they do have the right to allocate leave to you to ensure that you take it within the leave year. This should be a last resort, but if this does happen you will be advised and given notice, which must be at least twice as long as the amount of leave being allocated to you, for example 2 weeks' notice for 1 weeks leave, as per the Working Time Regulations 1998.

If you have high amounts of unused annual leave you are at risk of losing your leave if it not taken by the end of the annual leave year (see section 4.8 below).

In the case of bank holidays many departments, usually non-clinical, will be closed and colleagues will take their bank holiday entitlement on the day the bank holiday falls. However where operationally possible and subject to mutual agreement with your manager you can request to change your working days during a bank holiday week and therefore keep your leave entitlement in respect of that particular bank holiday, by fulfilling your contracted hours on alternative days. This will enable you to take your entitlement at another time instead, subject to approval. If as part of this request to change your working week, you request to work the bank holiday, instead of taking it off, your manager will need to be reassured that there are sufficient duties for you to undertake and there are no lone working issues either. If you make a request to work a bank holidays, when it would usually be a day your department will be closed, you will not be eligible for any bank holiday enhancements.

For more guidance on requesting/approving annual leave including considerations around extended leave requests, Christmas/New Year, school holidays please see [KNet](#) or [The Street](#) for more information.

4.7. Recording of Annual Leave and General Public Holidays (Bank Holidays)

All leave entitlements and leave that has been booked/approved is recorded on Employee Online/e-Rostering. You and your line manager are equally responsible for ensuring that information on the system is correct and up to date.

The number of hours that you were scheduled to be working on the day that you have booked will be the amount that is deducted from the system. Therefore, there should be no deduction from your entitlement on your non-working days or days you were rostered on an off duty.

Likewise, the same principles apply for the deduction of any bank holiday entitlement. You should only have hours deducted, if you were due to be at work and your department closes on a bank holiday or you have specifically requested to book it off. No deduction will be made from your entitlement on your non-working days or days you were rostered on an off duty.

4.8. Carry Over of Annual Leave

Annual leave can only be carried over from one leave year to the next, where there are statutory obligations/rules to do so, such as sickness absence or maternity/adoption/shared parental leave (or similar).

In exceptional circumstances where you can evidence that request/s for annual leave were made in line with departmental rules/this policy and could not be authorised due to service demands or patient safety, the carry over of leave can be considered by the Divisional Director/Director of the Service, who will review the request, along with any evidence, plus whether there was sufficient calendar time available where the leave could have been taken at an alternative time.

Due to the service and financial impact that carrying leave over has we are not able to consider any other requests outside of the reasons detailed above.

4.9. Sickness During Annual Leave

If you become unwell and are not able to take your annual leave as planned due to being unfit for work, you can request to have it converted to sickness absence. To do this you will need to follow the normal reporting processes for sickness absence, and report in as sick to your line manager on day 1 of your sickness, together with providing the correct certification, in order for your annual leave to be cancelled and converted to sickness absence instead. Please see the Sickness Absence Policy for more information. This does not apply to Bank Holidays which cannot be converted and will therefore be lost.

4.10. Requesting Annual Leave During Periods of Sickness Absence

It is recognised that if you are absent due to sickness, taking a period of annual leave can be beneficial to your recovery. Therefore, you can take a reasonable amount of annual leave during this time and further details about how to do this can be found in the Sickness Absence Policy.

5. ROLES & RESPONSIBILITIES

ROLE	RESPONSIBILITY
Chief Executive and the Trust Board	Are responsible for ensuring there is a policy in place.
Trust Managers	Are responsible for ensuring the practical application of this policy in a fair and consistent manner
People Partnering Team	Are responsible for suppling managers who are using this policy.
All Trust Employees	Have a responsibility to: • Follow the processes detailed in the policy. • Support the Trust to achieve its Vision • Act at all times in accordance with the Trust values • Follow duties and expectations of staff as detailed in the NHS Constitution – Staff Responsibilities

6. DEFINITIONS

Agenda for Change	The NHS Pay System all staff excluding Medical and Dental and Very Senior Managers
Statutory	Rules or laws as set by the Government

7. COMPLIANCE STATEMENTS

Equality & Diversity

This document has been designed to promote equality, diversity, inclusion and human rights in line with the Trust's Equality, Diversity and Inclusion Strategies. It has also been analysed to ensure that as part of the Public Sector Equality Duty the Trust has demonstrated that it has given 'due regard' to its equality duty and that, as far as is practicable, this document is free from having a potential discriminatory or adverse/negative impact on people or groups of people who have relevant protected characteristics, as defined in the Equality Act of 2010.

The completed 'equality analysis' assessment tool must be submitted with the policy. The assessment tool must be completed by someone trained to carry out impact assessments.

NHS Constitution

The contents of this document incorporates the NHS Constitution and sets out the rights, to which, where applicable, patients, public and staff are entitled, and pledges

which the NHS is committed to achieve, together with the responsibilities which, where applicable, public, patients and staff owe to one another. The foundation of this document is based on the Principles and Values of the NHS along with the Vision and Values of Northampton General Hospital NHS Trust.

Person Identifiable/Confidential Data and Privacy Rights

In line with the UK General Data Protection Regulation (2016) and the Data Protection Act (2018) the Trust is obliged to treat all information in a secure, professional and ethical manner, whilst keeping all person identifiable and personal data confidential. In addition, the Trust will not share employee information with a third party, unless there is a legal basis for disclosure, for example for the detection and prevention of crime, or if it is in the legitimate interest of the Trust.

As part of the Data Security and Protection policies of the Trust and data protection legislation, if the Trust is required to share any reports / information / data relating to the processes and procedures of any of our policies, the data, where possible, will be anonymised to remove person identifiable / confidential data unless there is a justifiable reason not to. It is important that policy leads are aware that policies may be released in response to FOI requests.

For further information regarding a Data Protection Impact Assessment and Sharing Personal Data, please contact the Data Security and Protection Team @ ngh-tr.data.protectionact@nhs.net OR datix.enquiries@nhs.net

8. IMPLEMENTATION & TRAINING

Training relating to this policy will be available from the People Partnering team, who will cascade the policy to relevant managers and ensure supporting information is available on the Trust intranet sites.

9. MONITORING & REVIEW

Requirement of the policy and compliance to be monitored	Frequency of audit	Responsibility for audit	Results of monitoring reported at:
Reporting of % leave booked on each roster	Quarterly	Head of People Processes and Planning	HMT

10. REFERENCES & ASSOCIATED DOCUMENTATION

Kettering General Hospital Foundation Trust (2023) Annual Leave for Non-Medical Staff A.1.3 - Archived

NHS Employers (2023) Terms and Conditions of Service Handbook [online] London.
Available from: NHS Terms and Conditions of Service Handbook | NHS Employers
[Accessed 18 September 2023]

Northampton General Hospital NHS Trust (2020) Annual Leave Policy. NGH-PO-
562. Northampton. NGHT - Archived

The Working Time Regulations 1998 ([legislation.gov.uk](https://www.legislation.gov.uk))

University Hospitals of Northamptonshire (2022) Leave in Relation to Starting a
Family Policy. UHN-PO-HR-10

University Hospitals of Northamptonshire (2023) Special Leave Policy. UHN-PO-
HR19.

APPENDICES

Appendix 1 Equality Impact Assessment (EQIA)

Appendix 1 Equality Impact Assessment (EQIA)

Equality Impact Assessment (EQIA) – Initial Assessment			
1.Division	People Division/HR	2. Department	People Services
3. Person(s) completing this form	Sarah Kinsella, HR Business Partner	4. Contact Information	Sarah.kinsella5@nhs.net
5. Others involved		6. Start date of this assessment	15 February 2024
7. What is being assessed (please tick)	New Procedural Doc ☐ Existing Procedural Doc ☒ New Service or Function ☐ Existing Service or Function ☐	8. Implementation/ effective date	TBC
9. Name of Policy	Annual Leave Policy		
10. What are the aims / objectives of policy this service?	This policy provides instruction and guidance on annual leave and Public Holiday entitlements and the application process for requesting leave for all substantive colleagues with an Agenda for Change contract of employment.		
11. Who will be impacted by policy / service (please tick)	Patients ☐ Carers ☐ Public ☐ Staff ☒ Other ☐	11a. If staff are impacted, how many individuals / Which Groups of Staff are likely to be affected?	All
12. Who has been involved in the policy / service development (please tick)	Patients ☐ Carers ☐ Public ☐ Staff ☒ Other ☒	12a. If yes, who have you involved and how have they been involved	Unions, Managers, HR Team
13. What further consultation method(s), if any, are you proposing?	Formal consultation through Trust established Trade Union negotiation forum	14. How are any changes / amendments to the policy / service to be communicated?	Formal consultation period
Equality Impact Assessment – Initial Assessment Outcome			
15. As part of the completing the above have you or a member of the group conducting EQIA identified any issues relating to the specific service/policy/plan in relation to gender, race, age, religion/belief, disability, sexual orientation, gender reassignment, marriage & civil partnership or pregnancy & maternity?	No	☒	EQIA Complete - If relating to a procedural document submit as part of the ratification process - If not relating to procedural documents please send completed EQIA to - KGH - kg-h-tr.diversity@nhs.net - NGH - ng-h-tr.edi@nhs.net
	Yes	☐	Requires EQIA Full Assessment to be completed – see below.

Equality Impact Assessment – Full Assessment

Review of any previous EQIA actions

What actions did you plan last time? (List them from the previous EQIA)	What improved as a result? What outcomes have these actions achieved?	What <u>further</u> actions do you need to take? (add these to the Action plan below)

Review of information, equality analysis and potential actions

Protected characteristics groups from the Equality Act 2010	What do you know? Summary of data about your service-users and/or staff	What do people tell you? Summary of service-user and/or staff feedback	What does this mean? Positive / Neutral / Negative Impact identified from data and feedback (actual and potential)	What can you do? All potential actions to: • advance equality of opportunity, • eliminate discrimination, and • foster good relations
Age				
Disability				
Gender reassignment				
Pregnancy and maternity				
Race/ethnicity Including migrants, refugees and asylum seekers				
Religion or belief				

Protected characteristics groups from the Equality Act 2010	What do you know? Summary of data about your service-users and/or staff	What do people tell you? Summary of service-user and/or staff feedback	What does this mean? Positive / Neutral / Negative Impact identified from data and feedback (actual and potential)	What can you do? All potential actions to: • advance equality of opportunity, • eliminate discrimination, and • foster good relations
Sex/Gender				
Sexual orientation				
Marriage and civil partnership				
Other relevant groups (e.g. carers)				

Equality Impact Assessment – Full Assessment Outcome

Assessment of overall impacts and recommendations	
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Equality Impact Assessment – Detailed list of data/community feedback that informed your EQIA

Title (of data, research or engagement)	Date	Gaps in data	Actions to fill these gaps: who else do you need to engage with? (add these to the Action Plan below, with a timeframe)

Equality Impact Assessment – Prioritised Action Plan¹

Impact identified and group(s) affected	Action planned	Expected outcome	Measure of success	Timeframe

Equality Impact Assessment – Final Assessment Outcome

As part of the completing the above have all the issues identified been addressed as part of EQIA assessment	No	☐	Please speak to Head of Organisational Development and Inclusion
	Yes	☐	EQIA Complete - If relating to a procedural document submit as part of the ratification process - If not relating to procedural documents please send completed EQIA to - KGH - kgh-tr.diversity@nhs.net - NGH - ngh-tr.edi@nhs.net

¹ These actions must now be transferred to service or business plans and monitored to ensure they achieve the outcomes identified.